

The Vice-President's Pension Act, 1997

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The Vice-President's Pension Act, 1997

UNION OF INDIA

India

The Vice-President's Pension Act, 1997

Act 30 of 1997

Published on 28 May 1997

Commenced on 28 May 1997

[This is the version of this document from 30 December 2008.]

[Note: The original publication document is not available and this content could not be verified.]

[Amended by

The Vice-President's Pension (Amendment) Act, 2002 (Act 23 of 2002)

on

1 January 2002

]

[Amended by THE VICE-PRESIDENT'S PENSION (AMENDMENT) ACT, 2008 (Act 29 of 2008) on

30 December 2008

]

The Vice-President's Pension Act, 1997

ACT NO. 30 OF 1997

1194.

[28th May, 1997]

An Act to provide for the payment of pension and other facilities to retiring Vice-Presidents.

BE it enacted by Parliament in the Forty-eighth Year of the Republic of India as follows:-

1.

Short title.

This Act may be called the Vice-President's Pension Act, 1997.

2.

Pension to retiring Vice-Presidents.

(1)

There shall be paid to every person who ceases to hold office as Vice-President, either by the expiration of his term of office or by resignation of his office, a pension [at the rate of fifty per cent. of the salary of the Vice-President]

[Substituted by Act No. 29 of 2008, section 2 (w.e.f. 1.1.2006).]

per month, for the remainder of his life:

Provided that such person shall not be entitled to receive any pension during the period he holds the office of the Prime Minister, a Minister or any other office or becomes a Member of Parliament and is in receipt of salary and allowances which are defrayed out of the Consolidated fund of India or the Consolidated Fund of a State.

(1A)

[The spouse of a person who dies-

(a)

while holding the office of Vice-President, or

(b)

after ceasing to hold office as Vice-President either by the expiration of his term of office or by resignation of his office, shall be paid a family pension at the rate of fifty per cent. of pension as is admissible to a retiring Vice-President, for the remainder of her life.]

[Inserted by Act 23 of 2002, section 2 (w.e.f. 5.7.2002).]

(2)

Subject to any rules that may be made in this behalf, every such person shall, for the remainder of his life, be entitled-

(a)

[to the use without payment of rent of such furnished residence (including its maintenance), as the Central Government may determine from time to time;]

[Substituted by Act 45 of 1999, section 2, for clause (a) (w.e.f. 30.12.1999).]

(b)

to the use of similar telephone facilities at his residence, as a member of Parliament is entitled to under the provisions of the Salary, Allowances and Pension of Members of Parliament Act, 1954 (30 of 1954);

(c)

[to secretarial staff consisting of a Private Secretary, an Additional Private Secretary, a Personal Assistant and two Peons and office expenses not exceeding [ninety thousand rupees]

[Substituted by Act 29 of 2008, section 2, for clause (c) (w.e.f. 30.12.2008).]

per annum;]

(d)

to the same facilities for himself as respects medical attendance and treatment and on the same conditions as a retired president is entitled to under the provisions of the President's Emoluments and Pension Act, 1951 (30 of 1951);

(e)

to the same facilities for his spouse and minor children as respects medical attendance and treatment and on the same conditions as the spouse of a retired President is entitled to under the provisions of the President's Emoluments and Pensions Act, 1951 (30 of 1951); and

(f)

[to travel anywhere in India, accompanied by spouse or a companion or a relative, by the highest class by air, rail or steamer;]

[Substituted by Act 45 of 1999, section 2 for clause (f) (w.e.f. 30.12.1999).]

(3)

[Where any such person is re-elected to the office of Vice-President, he or his spouse shall not be eligible to any benefit under this section for the period during which such person again holds such office.

(4)

Where any person being a Vice-President gets elected to the office of the President of India, he or his spouse shall not be eligible to any benefit under this section]

[Inserted by Act 45 of 1999, section 2 (w.e.f. 30.12.1999).]

3.

Medical facilities to the family of deceased Vice-President.

Subject to any rules that may be made in this behalf, the spouse of a person who dies while holding the office of Vice-President shall, for the remainder of life, be entitled to medical attendance and treatment, free of charge.

3A.

[Free accommodation to spouse of Vice-President.

[Inserted by Act 23 of 2002, section 3 (w.e.f. 5.7.2002).]

Subject to any rules that may be made in this behalf, the spouse of a person who dies-

(a)

while holding the office of Vice-President, or

(b)

after ceasing to hold office as Vice-President either by the expiration of his term of office or by resignation of his office, shall be entitled to the use of [furnished residence (including its maintenance)] without payment of licence fee, for the remainder of her life.]

4.

Pension to be charged on the Consolidated Fund of India.

Any sum payable under this Act shall be charged on the Consolidated Fund of India.

5.

Power to make rules.

(1)

The Central Government may, by notification in the Official Gazette, make rules for carrying out the purposes of this Act.

(2)

Every rule made by the Central Government under this Act, shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the rule or both Houses agree that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

6.

[Power to remove difficulties.

[Inserted by Act 29 of 2008, section 4 (w.e.f. 30.12.2008).]

–(1) If any difficulty arises in giving effect to the provisions of this Act as amended by the Vice-President's Pension (Amendment) Act, 2008 (29 of 2008), the Central Government may, by order, do anything not inconsistent with such provisions for the purpose of removing the difficulty:

Provided that no such order shall be made after the expiration of two years from the date on which this Act comes into force.

(2)

Every order made under sub-section (1) shall be laid before each House of Parliament.]

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